

This is not fair to the Defendant. It is not fair to begin a lawsuit, prevent the Defendant from properly defending herself by virtue of not participating in the discovery process, then wave off any attempts by Defendant to accommodate the Plaintiff.

If Plaintiff could not participate in the prosecution of the case, he had options. He could have, with some efforts to communicate with Defendant, sought an agreement to dismiss without prejudice but with a tolling of any statute of limitations issues. He made no such attempt. He could also simply have dismissed without prejudice. That, obviously, did not happen either.

This court finds that the 6 hours that Defendant's counsel spent on this issue is reasonable. However, the hourly rate of over \$650, for a limited civil case in the Bay Area, is not. In this court's experience, an hourly rate of \$450 is appropriate for the level of complexity of this matter.

Further, this court does not find that Plaintiff's supplemental responses on 8/12/26 substantially justify the conduct. They are nearly a year late and Plaintiff paid little attention to Defendant's overtures to work out an alternative deadline. What's more, Plaintiff has elected to only respond to the first 35 requests, believing he can invoke the statutory cap at this late hour. He cannot. It's far too late for that; objections have been waived.

However, the court is sympathetic to the fact that Plaintiff has been burdened by the care he must provide for his spouse, and finds the full sanction amount (\$450/hr for 6 hours, totaling \$2,700) to be unjust. The court will, then, sanction the Plaintiff for half that amount, or, **\$1,350**.

Disposition

Defendant's Motion is granted.

Plaintiff is ordered to answer the remaining interrogatories within 30 days of today, 8/25/26.

Plaintiff to pay Defendant sanctions in the amount of \$1,350, by 12/1/26, 5pm.

Defendant to file Order and serve Plaintiff.

8. 9:00 AM CASE NUMBER: L25-09401

CASE NAME: CAPITAL ONE N.A. VS. AMY NILSON

MOTION TO DISMISS

FILED BY:

TENTATIVE RULING:

This was vacated.

9. 9:00 AM CASE NUMBER: L25-12479

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

**FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON DEFENDANT ANIL YADAV
PURSUANT TO CCP 413.30**

FILED BY: VAN DE POEL & LEVY LLP

TENTATIVE RULING:

Plaintiff has requested leave to serve process on Defendant Anil Yadav (“Anil”) by serving counsel for a company purportedly operated by Defendant Anil, as well as by mailing process documents to the purported residence of Defendant Anil, which has an address in Sunol.

Background

Plaintiff, in their Declaration, notes that they have confirmed the Sunol address as the residence for Defendant Anil “through public records.” There is no further explanation of what this means. Plaintiff describes several unsuccessful attempts of service at this address, but none of these attempts suggest any confirmation that Defendant Anil indeed resides at the address.

Plaintiff also provides exhibits showing a link between Defendant Anil and the company he apparently runs, with the address of the business, as well as email exchanges with the attorneys of this company, who decline to accept service for Defendant Anil.

Analysis

Section 413.30 of the CCP permits a court to allow an alternative method for service of process, but it requires the moving party to show that they’ve made diligent efforts to serve the other party.

That has not happened here.

It is unclear how Plaintiff came up with the Sunol address. Which public records were used to confirm that this address is, in fact, associated with Defendant Anil?

Disposition

Plaintiff’s Application is denied without prejudice.

Plaintiff to file Order.

**10. 9:00 AM CASE NUMBER: L25-14082
CASE NAME: WELLS FARGO BANK, N.A. VS. BRE BRIGGS
FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.